EVIDENTIARY COMPARISON

Prior Knowledge and Refusal to Correct the Record

Docketed SEC/Sue Curtin evidence, Paul B. Green filings, and FOMB correction notices

Prepared for	Richard R. Lawless
Current through	August 21, 2026
Purpose	Compare proof of access, notice, later representations, and correction status

Executive finding

Bottom line. The record supports three different forms of prior knowledge. The SEC/Verdi sequence is the strongest because the SEC filed the contrary investigative description in the same case seven days before defending its Answer. The Green record proves service, docket availability, and sworn review of the case files before later characterizations, but does not prove which particular exhibit he read. The FOMB record proves actual awareness of PREPA Dkt. 5836 because FOMB cited it in its own First Circuit filing; three later emails then gave direct notice of the Curtin evidence and requested correction. No FOMB or Proskauer response and no corrective filing were identified in the materials reviewed through August 21, 2026.

Use of the word “refusal.” For this report, it means that no correction was identified after repeated written requests. The present record does not contain an express FOMB message declining correction, so silence should not be treated by itself as proof of intent, bad faith, or a legal violation.

Knowledge standard. A filed document proves docket availability; a proof of service supports delivery; a sworn statement that counsel reviewed the case files supports an inference of awareness; a party's own citation to a docket entry is direct proof that the party knew that entry existed. None of those facts automatically proves that the recipient read, understood, or accepted every page.

Evidence-strength legend

Level	Meaning
A — direct	Same-case filing by counsel, express self-citation, or other direct proof of access before the later statement.
B — strong notice	Docketing plus service and later sworn file review; actual reading of every exhibit remains inferential.
C — limited	Institutional or public-record notice without a verified bridge to the individual lawyer's personal review.
Post-notice	Direct delivery after the challenged statement; relevant to correction duties, not retroactive personal knowledge.

I. SEC and Paul B. Green prior-knowledge matrix

This matrix compares evidence that was already on a federal docket before the later statement. It separates the SEC's direct same-case sequence from the more inferential cross-case notice involving DOJ litigation counsel.

Actor / forum	Evidence already docketed	Later statement or sworn filing	Timing / access	Assessment and limit
SEC / Alexandra Verdi 01637	Dkt. 129-4, filed Aug. 19, 2022, was the SEC's own joint exhibit. Its Vaughn material described Enforcement analysis of Lawless's TCR, an investigative work item, attorney calls, requested financial analysis, and investigative routing/preservation.	Dkts. 135 and 135-1, filed Aug. 26, 2022, said there was no reason to believe the SEC made false or improper statements. Verdi swore she had conferred with SEC staff to confirm the Answer was accurate, in good faith, and reflected staff knowledge.	7 days Same case; same SEC counsel filed both.	A — direct same-case access. This is the clearest prior-knowledge sequence. It proves the investigative description was in the SEC litigation record before the defense of the Answer. It does not alone resolve how counsel interpreted every Vaughn entry.
SEC / FOIA record 01637	Dkt. 76, filed Feb. 18, 2022, stated that SEC searches had identified 1,726 potentially responsive pages, about 209,400 pages, and about 268,000 emails for related requests, while one search initially reported no records. Later SEC correspondence identified about 330 email records and produced 106 pages after the no-record response.	Dkt. 135 later defended the accuracy and reasonableness of SEC statements and inquiry. Dkt. 135-1 states that Verdi consulted SEC staff in preparing the Answer.	188 days SEC counsel filed both records.	A/B — direct access to volume/search facts. The counts are strong evidence of substantial responsive repositories and changing search results. They do not prove that every hit was unique, responsive, or substantively supportive of Lawless's claims.
Paul B. Green 02174	Dkts. 48 and 48-1 were filed May 29, 2022 (duplicate stamps also show Dkts. 46/46-1 filed June 1). Dkt. 48 p. 3 states Evidence Exhibit Three was served on Green May 30. The attached SEC records identified 330 email hits, 110 Curtin emails (25 directly between Lawless and Curtin), 65 other name-search emails, a 106-page amended production, 1,726 potential Curtin pages, 128 produced pages, 21 pages withheld in full, about 209,400 pages, and about 268,000 emails.	Dkt. 52, filed Aug. 3, 2022, opposed an emergency motion as unsupported. Green declared under penalty of perjury that he spoke from personal knowledge and review of the files, and described 02174 and 00148 as two duplicative cases claiming the SEC had a duty to bring Puerto Rico civil proceedings.	65 days from service Same attorney and same case.	B — strong notice and awareness inference. The proof of service and sworn file-review statement are meaningful. The docket does not establish which pages Green actually read, and the 2026 Curtin production was not then available in its later form.
Paul B. Green 00148	By May 30, 2022, Green had been served in the related 02174 case with the government-authored FOIA records described above. He represented the United States in both matters. His later declaration also confirmed receipt of more than 400 emails from Lawless since March 16, 2022.	Dkt. 82, filed Nov. 23, 2022, called the submitted materials unsubstantiated internet documents, said no documents supported the motion, and said nondisclosure was implausible because the claimed documents had been filed on the docket. Dkt. 82-1 again declared personal knowledge and review of the files.	177 days from service Cross-case notice; same counsel.	B — strong cross-case notice. Dkt. 82 expressly shows awareness that documents were on a docket and sworn file review, but the precise mapping between each challenged assertion and each item in Exhibit Three should still be shown page by page.

Actor / forum	Evidence already docketed	Later statement or sworn filing	Timing / access	Assessment and limit
Paul B. Green **01700**	Dkt. 45, filed July 18, 2023, placed the 611-page Independent Investigator's Final Report on the docket. It was public/FOMB evidence concerning Puerto Rico debt, not the later Curtin production.	Dkt. 56, filed Aug. 18, 2023, continued to describe proposed claims as meritless and emphasized that the amendment relied on older public documents. Green signed the opposition; its accompanying declaration concerned service and procedure rather than swearing to the substantive PREPA characterization.	31 days Same case docket.	C — docket availability, limited personal-knowledge proof. This row shows access to substantial public bond evidence, but it is not proof that Green possessed the internal Curtin/Enforcement record.

Source locator: C.D. Cal. 5:21-cv-01637-JWH-SP, Dkts. 76, 76-2, 129-4, 135, 135-1 and 167; 5:21-cv-02174-JWH-SP, Dkts. 48, 48-1 and 52; 5:22-cv-00148-JWH-SP, Dkts. 82 and 82-1; 5:22-cv-01700-JWH-SP, Dkts. 45 and 56.

What the Green docket evidence establishes

- Government-authored FOIA letters and emails were not merely mentioned; copies were placed on the 02174 docket and a proof of service states they were sent to Green.
- Green later swore that his declarations were based on personal knowledge and review of the files, and in 00148 he expressly acknowledged that documents alleged to have been withheld had been filed on a docket.
- Those facts support a serious prior-notice inquiry. They do not, without internal DOJ email, document-access logs, testimony, or a more specific admission, conclusively establish which attachment he read or what he understood it to prove.

II. Content of the evidence served before Green's later filings

The following chart isolates the government-authored records embedded in Evidence Exhibit Three. This matters because docketing a party's allegations is weaker than docketing the agency's own letters, search results, and appeal decisions.

Government record	What it said	Docket location	Proper inference / limit
SEC email-search results	Verdi's Mar. 1, 2022 email reported about 330 potentially responsive email records for a Gensler search; about 110 emails containing “Lawless” sent to or from Curtin, including about 25 between Curtin and Lawless; and about 65 emails for an Aug.–Nov. 2016 search.	02174 Dkt. 48-1 pp. 6–8 (same material also appears later in the attachment).	Shows the agency knew that substantial internal communications existed. Search hits are not the same as confirmed substantive evidence.
Changed no-record result	The SEC's Jan. 20, 2022 response said no responsive Gensler records existed. A Mar. 11 amended response stated that another address should have been searched and produced 106 pages.	02174 Dkt. 48-1 p. 9; Dkt. 48 pp. 14–18.	Strong proof that an initial no-record result changed after an additional search; not proof that the omitted search was intentional.
Curtin-specific volume / withholding	The Apr. 14 response said an earlier search identified 1,726 potentially responsive Curtin-email pages. A narrowed search produced 128 pages and withheld 21 pages in full under Exemption 5.	02174 Dkt. 48 pp. 19–20.	Direct proof of a material Curtin-related agency record before the later 447-page production. Privileged withholding does not imply wrongdoing.

Government record	What it said	Docket location	Proper inference / limit
Puerto Rico bonds + fraud search	For a request combining Puerto Rico, bonds, and fraud/criminal/illegal terms, the SEC reported about 268,000 potentially responsive emails and warned that review could not begin for 36 months or more.	02174 Dkt. 48-1 pp. 31–32.	Strong scale evidence; the SEC expressly cautioned that results could contain false hits and duplicates.
Lawless-related record estimate	For an Aug.–Nov. 2016 name search, the SEC reported 3.49 GB, estimated as about 209,400 pages, with an estimated 4,188 review hours.	02174 Dkt. 48-1 pp. 36–37.	Strong evidence that a very large potential repository existed; not a count of unique or supportive documents.
OIG law-enforcement context	An SEC FOIA appeal decision stated that OIG material met Exemption 7's law-enforcement-purpose threshold and discussed a pending or prospective investigation.	02174 Dkt. 48-1, Mar. 9, 2022 OGC appeal decision, attachment pages following the amended-response materials.	Corroborates government investigative context. The exact subject and scope of the protected investigation require the unredacted record.

Source locator: Evidence Exhibit Three and attachment, 02174 Dkts. 48 and 48-1 (filed May 29, 2022; proof of service dated May 30, 2022). Duplicate docket stamps in the saved copies also identify Dkts. 46 and 46-1 filed June 1, 2022.

Comparison with the later Curtin production

> **Critical distinction.** The 2022 docket already disclosed the existence, scale, and withholding of Curtin-related and Puerto Rico-bond records. The later 2026 Curtin production added the contents needed for document-to-document comparison: PREPA Matter B-02949, “WB_Lawless, Richard,” investigative routing, calls, requested financial analysis, DOJ Antitrust communications, and a “WHISTLEBLOWER PRODUCTION” label. The later production strengthens materiality, but it should not be used as automatic proof that Green personally knew its unreleased contents in 2022.

III. FOMB prior knowledge and three correction requests

The FOMB chronology contains two distinct knowledge periods: (1) actual awareness of PREPA Dkt. 5836 before the June 15 First Circuit statement, demonstrated by FOMB's own citation; and (2) direct post-statement notice of the later Curtin evidence through three written correction requests.

Event	Date	Knowledge / request	Statement or response status	Assessment
Pre-statement docket knowledge	Oct. 1, 2025 PREPA Dkt. 5836	Dkt. 5836 submitted evidence of alleged material misrepresentations, including Puerto Rico House Report 1049 and Treasury–SEC material. FOMB's June 15, 2026 First Circuit Notice expressly cited Dkt. 5836.	Jun. 15, 2026 First Cir. Doc. 00118461799: “Nothing in Lawless's extensive filings at this Court undermines the Title III court's certification.”	A — actual awareness of Dkt. 5836; 257 days. The self-citation is stronger than mere public availability. It does not prove that FOMB had the later 2026 Curtin production on June 15.
Correction request 1	Jul. 29, 2026 7:53 p.m.	Subject: “Request to Correct June 15, 2026 Representation to the First Circuit.” Sent to Proskauer counsel John E. Roberts, Michael A. Firestein, and Paul V. Possinger; copied to Matthias Rieker and Sylvette Santiago at FOMB. Linked the Curtin documents and requested a corrective/qualifying First Circuit notice.	No reply from promesa.gov or proskauer.com and no corrective filing were identified in the reviewed materials through Aug. 21.	Post-notice — 23 days without identified correction. Direct proof the correction issue was presented to named FOMB officials and counsel. Silence is not an express denial.

Event	Date	Knowledge / request	Statement or response status	Assessment
Correction request 2	Jul. 31, 2026 11:14 p.m. direct FOMB/counsel distribution	Subject: “FOMB's Duty to Correct the Record After Receiving the Curtin SEC Files.” Sent to Rieker, Santiago, Roberts, Firestein, Possinger, U.S. Trustee contacts, and numerous PROMESA parties. It identified B-02949, whistleblower processing, investigative work, requested analysis, and SEC–DOJ communications, and demanded review and correction of materially inaccurate or incomplete factual statements.	No reply from promesa.gov or proskauer.com and no corrective filing were identified in the reviewed materials through Aug. 21.	Post-notice — 21 days without identified correction. Direct notice of the later Curtin content and the requested remedial action.
Correction request 3	Aug. 9, 2026 8:57 a.m.	Subject: “FOMB Counsel's Knowledge of Docketed PREPA Evidence and June 15, 2026 Representation to the First Circuit — Nos. 26-1109 and 26-1180.” Sent to Santiago, Rieker, Proskauer counsel, the Title III court correspondence address, SEC/DOJ counsel, and oversight contacts. It emphasized that FOMB's own citation proved awareness of Dkt. 5836 and again requested review, qualification, or correction.	No reply from promesa.gov or proskauer.com and no corrective filing were identified in the reviewed materials through Aug. 21.	Post-notice — 12 days without identified correction. The third request removed any reasonable ambiguity about the precise statement, underlying docket entry, and requested forum for correction.

Source locator: PREPA Case No. 17-BK-4780-LTS, Dkt. 5836 (Oct. 1, 2025); First Circuit Nos. 26-1109/26-1180, Document 00118461799 (June 15, 2026); sent Gmail messages dated July 29, July 31 and Aug. 9, 2026. Mailbox search through Aug. 21 found no response from promesa.gov or proskauer.com to these subjects.

What the FOMB record establishes

- FOMB's June 15 filing itself demonstrates actual awareness of Dkt. 5836; this is not an inference based only on a public docket.
- The three later emails prove direct, repeated notice of the exact First Circuit statement, the later Curtin evidence, and the requested correction.
- The reviewed record supports the factual label “no identified correction after repeated notice.” It does not yet prove an express refusal, the reason for non-response, counsel's internal assessment, or a judicial finding that a correction was legally required.

IV. Comparative chart: what can fairly be said about prior knowledge

Actor / period	Type of knowledge	Best proof	Strength	Fair conclusion
SEC / Verdi before Dkt. 135	Direct same-case possession and filing	Dkt. 129-4 filed by SEC seven days earlier; Dkt. 135-1 swore to staff consultation.	High	The most defensible statement is that SEC litigation counsel had direct access to the docketed investigative description before defending the Answer.
Green before Dkt. 52	Service + docket + sworn file review	Dkt. 48 proof of service; government-authored FOIA documents; Dkt. 52 declaration based on personal knowledge and review of files.	Moderate–high	The record supports a strong inference of awareness and a focused inquiry into what he read. It does not conclusively prove review of every attachment.
Green before Dkt. 82	Cross-case notice + express acknowledgment of docketed documents	Same counsel in both matters; 177 days after service; Dkt. 82 said the claimed documents were on a docket; Dkt. 82-1 confirmed file review and 400+ emails.	Moderate–high	Stronger than mere availability, but the precise evidentiary contradiction must be tied to the particular page and statement.
DOJ institution during underlying events	Institutional knowledge	Curtin records document contact with DOJ Antitrust attorney Samson Asiyanbi and DOJ review/follow-up.	Institutional only	This shows a DOJ component had contact with the matter. It is not, by itself, proof that Green personally received Antitrust or SEC investigative files.
FOMB before June 15 filing	Express self-citation	FOMB cited PREPA Dkt. 5836 in the same filing containing the challenged statement.	High	Direct proof of awareness of Dkt. 5836, but not of the subsequently produced Curtin file.
FOMB after July 29, 2026	Repeated direct post-statement notice	Three correction emails to named officials/counsel; no reply or correction identified through Aug. 21.	High notice / intent unresolved	Supports current non-correction after notice. An express refusal or internal decision is not yet in the record.

V. Conclusions

1. SEC. The seven-day Dkt. 129-4 to Dkt. 135 sequence is the strongest evidence of prior access because the SEC placed the investigative description in the same case immediately before defending the accuracy of its statements and inquiry.

2. Paul B. Green. The docket proves more than mere allegation: government FOIA records were filed, a proof of service names Green, and his later declarations invoke personal knowledge and review of the files. That creates a serious and document-verifiable prior-knowledge question, but the current record should be described as strong notice and inference—not conclusive proof that he read every page or knew unreleased Curtin content.

3. FOMB. FOMB's own citation establishes actual awareness of Dkt. 5836 before its June 15 statement. The three later correction emails establish direct notice of the Curtin material and the exact requested correction. The presently supportable status is that no response or correction has been identified, while intent and legal duty remain unresolved.

4. Materiality. Prior knowledge is important because later filings and rulings used absence-of-support, frivolousness, duplication, and bad-faith descriptions. The docket chronology does not automatically reverse procedural rulings, but it provides a concrete basis for asking who reviewed what, when, and why no qualification or correction followed after the fuller record was supplied.

Most defensible formulation. The record demonstrates direct SEC access, strong DOJ-counsel notice, actual FOMB knowledge of the cited PREPA docket entry, and repeated post-statement notice to FOMB of the later Curtin evidence. It also demonstrates that no FOMB correction or response has been identified through August 21, 2026. The record does not yet establish every recipient's subjective understanding, an express FOMB refusal, or intent to mislead.

Source index

- Lawless v. SEC, No. 5:21-cv-01637-JWH-SP — Dkts. 76, 76-2, 129-4, 135, 135-1, 167, and current supplemental Dkts. 218/218-1.
- Lawless v. United States/SEC, No. 5:21-cv-02174-JWH-SP — Dkts. 48, 48-1, and 52 (saved duplicates also show Dkts. 46/46-1).
- Lawless v. United States, No. 5:22-cv-00148-JWH-SP — Dkts. 82 and 82-1.
- Lawless v. United States, No. 5:22-cv-01700-JWH-SP — Dkts. 45 and 56.
- PREPA Title III, No. 17-BK-4780-LTS — Dkt. 5836; First Circuit Nos. 26-1109/26-1180 — Document 00118461799.
- Gmail sent messages: July 29, 2026, “Request to Correct June 15, 2026 Representation to the First Circuit”; July 31, 2026, “FOMB's Duty to Correct the Record After Receiving the Curtin SEC Files”; Aug. 9, 2026, “FOMB Counsel's Knowledge of Docketed PREPA Evidence and June 15, 2026 Representation to the First Circuit — Nos. 26-1109 and 26-1180.”
- Later Curtin comparison record: SEC/Sue Curtin production; Ninth Circuit No. 25-6000, Dkt. 53.1; Master Evidentiary and Procedural Record current through Aug. 13, 2026.

Prepared as an evidentiary comparison, not as a finding of misconduct, intent, criminal liability, or the legal effect of any correction duty. Docket dates and page references should be checked against the official CM/ECF or appellate docket before filing this report in court.